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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**SUPPLEMENTAL MEMORANDUM OF
POINTS AND AUTHORITIES
(ACCESS / DEFENSE EMAIL
CONDUCT)**

Hearing: August 26, 2026
Time: 9:00 a.m.
Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under Code of Civil Procedure sections 391
2 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

3 5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure
4 section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

5 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

6 **I. INTRODUCTION**

7 Access to the civil courts is a fundamental right to petition subject to reasonable procedural regu-
8 lation for a plaintiff who appears to prosecute unadjudicated claims. (Cal. Const., art. I, §§ 3, 16;
9 Code Civ. Proc., § 1014.) Plaintiff is entitled to present legally cognizable claims for adjudication
10 under applicable procedural law, not merely to survive designation as a vexatious litigant. (*Crow-*
11 *ley v. Katleman* (1994) 8 Cal.4th 666; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888;
12 *Baral v. Schnitt* (2016) 1 Cal.5th 376.)

13 CSAA Insurance Exchange is a multi-billion-dollar institutional insurer. Through its claims pro-
14 cess, it certified a February 2021 investigation as “concluded” and denied Plaintiff’s claim without
15 obtaining foundational objective evidence, including 911 audio, body-worn camera footage, and
16 CAD records. Under established California Supreme Court precedent, an insurer’s duty to give
17 at least as much consideration to the insured’s interests as its own requires a thorough and fair
18 investigation prior to denying coverage. (*Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d
19 809, 818-819; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 723.) The primary rights
20 Plaintiff pursues against CSAA concern that certification and the concealment of an empty inves-
21 tigation file, not the negligence primary right previously tried against the insured driver. (*Crowley*,
22 8 Cal.4th at 681-682; *Mycogen*, 28 Cal.4th at 904; Opp. MPA Arg. I.A-D.)

23 When Plaintiff sought judicial process to test whether that file was empty, CSAA, through Porter
24 Scott, its panel counsel, activated a continuous course of claims-handling and litigation conduct
25 (*White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 885-886): multi-track dispositive motions
26 (anti-SLAPP, demurrer, section 436 strike) against Plaintiff’s leave path; settlement and voluntary-
27 dismissal pressure; repeated artificial-intelligence pejoratives in place of merits engagement; re-
28 quests that Plaintiff refrain from further filings; and, ultimately, a Code of Civil Procedure section

1 391 motion seeking security and statewide screening. That sequence is not proof of vexatiousness
2 under *Morton*. Evaluated under the totality of the circumstances (*Wilson*, 42 Cal.4th at 723), it
3 constitutes evidence from which the Court may reasonably infer that Defendant prefers to block
4 court access and discovery into the empty file rather than defend the investigation facts contem-
5 poraneous with certification. (*Wilson*, 42 Cal.4th 713; *Morton v. Wagner* (2007) 156 Cal.App.4th
6 963, 971-972; Cal. Const., art. I, § 3; Evid. Code, § 1220; Exs. F-N.) Fair Claims standards enter
7 only as standard of care under *Zhang v. Superior Court* (2013) 57 Cal.4th 364 and *Moradi-Shalal*
8 *v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, including 10 CCR section 2695.7(d);
9 Plaintiff does not plead a private Insurance Code section 790.03 tort.

10 This Supplemental Memorandum addresses the **email and access layer** of that continuum: liti-
11 gation tactics and communications by panel counsel that illuminate and corroborate Defendant's
12 ongoing failure to fulfill its duty of good faith (*White*, 40 Cal.3d at 885-886; *Gruenberg v. Aetna*
13 *Ins. Co.* (1973) 9 Cal.3d 566, 575). Coordinated dispositive stacking is accompanied by Porter
14 Scott emails that demand withdrawal, brand all filings meritless, substitute repeated references to
15 Plaintiff's alleged use of artificial intelligence rather than addressing the legal merits, and state sec-
16 tion 391 / "cease filings" commands. To the extent authenticated and offered against Defendant,
17 those communications constitute party admissions under Evid. Code section 1220 and serve as
18 probative evidence of Defendant's litigation strategy and state of mind (*White*, 40 Cal.3d at 885).
19 Exhibits F-N are offered as evidentiary illumination of litigation objectives for the section 391
20 inquiry under *White*, not as a freestanding post-filing tort claim against counsel or carrier under
21 Civil Code section 47(b). That campaign undercuts Defendant's section 391(b)(3) / 391.3 show-
22 ing and constitutes evidence from which the Court may reasonably infer that volume adjectives
23 ("harassing," "clogging," "AI-drafted") are strategic reframing, not *Morton* flagrant abuse.

24 Plaintiff Exhibits **F through N** (lodged with the Supplemental Exhibit Index) collect the defense-
25 authored sequence from April 10 through May 5, 2026, culminating in the July 21 section 391
26 motion. Those emails are relevant to the credibility of Defendant's section 391 assertion and to
27 the Court's statutory inquiry under sections 391(b)(3) and 391.3; Plaintiff does not offer them as
28 an independent freestanding wrong. This Supplemental Memorandum cross-walks Themes [3]-[5]

1 and Arguments II, IV, and VI of the principal Opposition Memorandum without repeating the full
2 primary-right / July 1 analysis. Existing Exhibit B remains non-threat service / meet-and-confer
3 samples; Exhibits F-N carry the email-sequence, artificial-intelligence-reference, and vexatious-
4 threat threads as evidence relevant to Defendant's litigation objectives. Plaintiff does not ask Dept.
5 302 to reverse Wong or to decide appeal A173827.

6 **II. LEGAL STANDARDS**

7 **A. OPEN-COURT ACCESS**

8 The California Constitution protects the right of the people to petition government for redress and
9 to access the courts. (Cal. Const., art. I, § 3.) A civil plaintiff may appear in propria persona. (Code
10 Civ. Proc., § 1014.) Status sanctions that impose security and prefiling screening chill that access
11 and require strict statutory predicates. (*Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169-1170.)

12 **B. SECTION 391 IS NOT A MERITS SUBSTITUTE**

13 Section 391(b)(3) reaches a person who, while acting in propria persona, repeatedly files unmer-
14 itorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other
15 tactics that are frivolous or solely intended to cause unnecessary delay. (*Morton*, 156 Cal.App.4th
16 at 971-972; see Code Civ. Proc., § 391, subd. (b)(3).) Docket volume and pejorative adjectives do
17 not establish flagrant abuse. Section 391.3 security requires both a vexatious finding and no rea-
18 sonable probability of prevailing. (*Shalant*, 51 Cal.4th at 1169-1170.) Neither provision authorizes
19 a vexatious-litigant finding based solely upon a defendant's preference for early dismissal rather
20 than the statutory findings required by section 391.

21 **C. PARTY ADMISSIONS AND EVIDENTIARY USE OF POST-FILING** 22 **LITIGATION CONDUCT**

23 Statements of a party or its authorized agents offered against that party are not made inadmissible
24 by the hearsay rule. (Evid. Code, § 1220.) Furthermore, an insurer's contractual duty of good
25 faith and fair dealing does not terminate upon the institution of litigation, and post-filing litigation
26 tactics may be evaluated as evidence illuminating the insurer's earlier claim-handling intent and
27 objectives. (*White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 885-886; *Wilson v. 21st Century*

1 *Ins. Co.* (2007) 42 Cal.4th 713, 723.) To the extent authenticated and offered against Defendant,
2 defense counsel emails authored by Tyler J. O’Connell of Porter Scott, counsel of record for CSAA
3 Insurance Exchange, constitute party admissions under Evid. Code section 1220 and are admissi-
4 ble statements from which the Court may infer Defendant’s contemporaneous litigation objectives
5 and strategy. Exhibits F-N are evidentiary illumination for the section 391 inquiry under *White*,
6 not a freestanding post-filing tort claim under Civil Code section 47(b).

7 **D. TONE GUARDRAIL**

8 As stated in the principal Opposition Memorandum, Argument II.D, any prior plaintiff-side tone
9 that fell below professional courtesy is withdrawn as a matter of advocacy. That concession does
10 not dilute the access analysis of **defense-authored** statements collected in Exhibits F-N.

11 **III. EMAIL SEQUENCE AS EVIDENCE RELEVANT TO DEFENDANT’S** 12 **LITIGATION OBJECTIVES**

13 The following pins track Exhibits F through N chronologically. Each pin identifies date, author,
14 operative defense language, and the evidentiary lean under *White*. Full quote blocks appear in the
15 exhibit volume. The sequence is offered as evidence relevant to Defendant’s litigation strategy and
16 to the Court’s evaluation of Defendant’s motion under Code of Civil Procedure section 391 under
17 the totality of the circumstances (*Wilson*, 42 Cal.4th at 723), not as an independent freestanding
18 cause of action or freestanding wrong.

19 **A. EXHIBIT F (APRIL 10, 2026): SETTLEMENT AND VOLUNTARY** 20 **DISMISSAL PRESSURE / FEE-SHIFTING WARNINGS**

21 Counsel O’Connell brands a draft motion “hopelessly defective,” then “urge[s]” Plaintiff “to with-
22 draw the pleadings, and dismiss all allegations, with prejudice,” while previewing anti-SLAPP
23 fees and reciprocal sanctions for “frivolously” seeking sanctions. (Ex. F.) That is settlement and
24 voluntary dismissal pressure and fee-shifting warnings accompanying demands for dismissal, not
25 empty-file merits engagement. It is evidence illuminating Defendant’s litigation objectives under
26 *White*.

1 **B. EXHIBITS G AND H (APRIL 24, 2026): MERIT ANNIHILATION +**
2 **REPEATED ARTIFICIAL-INTELLIGENCE REFERENCES (801 AND**
3 **802)**

4 In parallel emails on CGC-25-631801 and CGC-25-631802, counsel asserts Plaintiff's position has
5 "absolutely zero merit," condemns "incessant clogging of the docket," and replaces legal analysis
6 with "AI-generated" / "ChatGPT" / "spoon-fed AI hallucinations," ending "Full stop." (Exs. G,
7 H.) Parallel-case replication shows coordinated messaging, not case-specific legal critique. Those
8 statements illuminate Defendant's litigation objectives under *White*.

9 **C. EXHIBIT I (APRIL 24, 2026): HARASSMENT FRAME + ARTIFICIAL-**
10 **INTELLIGENCE SOPHISTICATION FRAMING**

11 Counsel frames amendment efforts as an effort to "subvert and sidestep" anti-SLAPP; brands Plain-
12 tiff's manner "clearly harassing"; and reduces writing to "artificial intelligence" with a "paper-thin
13 veneer of sophistication," while threatening sanctions for "uncivil conduct." (Ex. I.) Volume adjec-
14 tives and repeated references to Plaintiff's alleged use of artificial intelligence rather than address-
15 ing the legal merits substitute for record-based frivolousness proof under *Morton* and illuminate
16 Defendant's litigation objectives under *White*.

17 **D. EXHIBIT J (APRIL 27, 2026): SHUT DOWN MEET-AND-CONFER**
18 **/ PUBLIC-RECORD LOOP**

19 Counsel demands Plaintiff "cease copying the Court," then brands meet-and-confer letters "AI-
20 drafted," "burdensome, harassing, repetitive," and "lacking in legal merit." (Ex. J.) Counsel re-
21 quests that Plaintiff refrain from court-copied correspondence are not a substitute for adjudicating
22 empty-file theories; they illuminate Defendant's litigation objectives under *White*.

23 **E. EXHIBIT K (APRIL 30, 2026): DIRECT SECTION 391 THREAT**
24 **(FUTURE-MOTION INFERENCE)**

25 Counsel condemns "frivolous motions" and states: "I will move the Court to have you deemed a
26 **vexatious litigant.**" (Ex. K.) The July 21, 2026 motion is the fulfillment of that April 30 threat,

1 not a sudden discovery of *Morton* abuse. That threat illuminates Defendant’s litigation objectives
2 under *White*.

3 **F. EXHIBIT L (APRIL 30, 2026): CHANNEL / SHRINK ADVOCACY** 4 **SURFACE**

5 Counsel demands a “single Opposition,” brands a “constant drip of emails,” and threatens to raise
6 “lack of regard for procedure” with the Court. (Ex. L.) Requests that Plaintiff channel advocacy
7 into a single opposition illuminate Defendant’s litigation objectives under *White*.

8 **G. EXHIBIT M (MAY 4, 2026): DIRECT CEASE-FILINGS COMMAND**

9 Counsel writes: “You cannot continue to submit papers”; “Please cease these additional filings”;
10 and threatens to address Plaintiff’s “harassing manner” with the Court. (Ex. M.) A private cease-
11 filings command by carrier counsel reflects requests by opposing counsel that Plaintiff refrain from
12 further filings, not a court order. It illuminates Defendant’s litigation objectives under *White*.

13 **H. EXHIBIT N (MAY 5, 2026): CHILL ORAL PRESENTATION**

14 Counsel states an intention to seek contempt sanctions (“I will request that the Court issue a similar
15 admonishment, including potentially contempt sanctions”) if Plaintiff appears to present argument.
16 (Ex. N.) Stating an intention to seek contempt for appearance chills oral advocacy and completes
17 the April-May email sequence that precedes the July 21 motion seeking designation as a vexatious
18 litigant. It illuminates Defendant’s litigation objectives under *White*.

19 **IV. INVERSION AGAINST DEFENDANT’S SECTION 391 THEORY**

20 **A. PREMEDITATION**

21 Exhibit K’s express vexatious-litigant threat on April 30, 2026, followed by the July 21 filing,
22 may reasonably support an inference that Defendant intended to pursue a future vexatious-litigant
23 motion. A party that announces it will seek designation as a vexatious litigant under section 391,
24 then does so after a campaign of repeated references to Plaintiff’s alleged use of artificial intelli-
25 gence rather than addressing the legal merits and cease-filings commands, cannot treat the resulting
26 correspondence volume as independent proof of plaintiff’s frivolousness.

1 **B. “CEASE FILINGS” IS REQUESTS BY OPPOSING COUNSEL THAT**
2 **PLAINTIFF REFRAIN FROM FURTHER FILINGS**

3 Exhibit M’s “Please cease these additional filings” and “You cannot continue to submit papers” are
4 not court orders. They are requests by opposing counsel that Plaintiff refrain from further filings.
5 Counting replies to such demands as “harassment” inverts authorship of the paper war. (Opp. MPA
6 Arg. II.C.)

7 **C. ALLEGATIONS CONCERNING DRAFTING METHODS DO NOT**
8 **SATISFY SECTION 391**

9 Exhibits G through J substitute “AI-generated,” “ChatGPT,” “spoon-fed AI hallucinations,” and
10 “paper-thin veneer of sophistication” for case-specific frivolousness proof. Allegations concerning
11 Plaintiff’s drafting methods do not themselves establish that the statutory requirements of section
12 391 have been satisfied.

13 **D. WITHDRAW / DISMISS DEMAND IS SETTLEMENT AND VOLUN-**
14 **TARY DISMISSAL PRESSURE**

15 Exhibit F’s demand to “withdraw the pleadings, and dismiss all allegations, with prejudice,” backed
16 by fee and reciprocal-sanction threats, is settlement and voluntary dismissal pressure. Although
17 parties may encourage voluntary dismissal during meet-and-confer efforts, such correspondence
18 does not itself establish that Plaintiff’s claims satisfy the statutory definition of vexatious litigation.

19 **E. CONTINUOUS COURSE OF CLAIMS HANDLING AND LITIGA-**
20 **TION CONDUCT**

21 The email sequence sits atop Defendant’s verified multi-motion stack against Plaintiff’s leave /
22 SAC path (anti-SLAPP, demurrer, section 436 strike, plus opposition to leave). (Opp. MPA Theme
23 [4]; Ex. E.) Under California law, an insurer’s conduct must be evaluated as one continuous course
24 of conduct rather than isolated events. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 575;
25 *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 885-886.) Designation as a vexatious litigant
26 that follows settlement and voluntary dismissal pressure emails and cease-filings commands is the

1 endgame of a merits-avoidance campaign, not proof that Plaintiff lacks any reasonable probability
2 of prevailing on unadjudicated rights. (*Baral*, 1 Cal.5th at 393-396; Opp. MPA Args. III, V, VI.)

3 **F. CONTINUUM: EMPTY FILE TO SECTION 391**

4 The empty-file controversy and the email sequence are one institutional pattern evaluated under
5 the totality of the circumstances (*Wilson*, 42 Cal.4th at 723), not isolated skirmishes:

- 6 1. **Act I (certification).** CSAA certified a February 2021 investigation as “concluded” without
7 foundational obtainment of 911, BWC, and CAD. An insurer may not rely upon an inadequate
8 or pre-determined investigation to excuse its failure to pay benefits. (*Egan v. Mutual of*
9 *Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818-819; *Wilson*, 42 Cal.4th at 723.) (Opp. MPA Arg.
10 I.A; *Zhang*, 57 Cal.4th 364; 10 CCR § 2695.7(d) as standard of care only; *Moradi-Shalal*, 46
11 Cal.3d 287 (not a private Insurance Code § 790.03 tort).)
- 12 2. **Act II (concealment).** The second primary right is opacity of that empty file; 911/BWC/CAD
13 materials are *Park* evidence of non-obtainment, not section 391(b)(2) relitigation of the PI
14 verdict. (Opp. MPA Arg. I.D; Ex. C.)
- 15 3. **Act III (continuous course of conduct).** Once sued, dispositive stacking and stay-scope
16 fights substitute for file production. Because the duty of good faith continues post-filing,
17 these litigation tactics illuminate Defendant’s underlying objective to protect an inadequate
18 investigation. (*White*, 40 Cal.3d at 885-886.) (Opp. MPA Themes [3]-[4]; Ex. E.)
- 19 4. **Act IV (email gatekeeping).** Exhibits F-N show the same corporate process: keep emptiness
20 from being discovered by chilling court access and shrinking advocacy. (Supp. MPA § III;
21 Exs. F-N.)
- 22 5. **Act V (section 391 endgame).** The July 21 motion seeking designation as a vexatious litigant,
23 security, and statewide screening is the endgame of that pattern, not proof that empty-file
24 primary rights are frivolous. (*Morton*, 156 Cal.App.4th at 971-972; *Shalant*, 51 Cal.4th at
25 1169-1170; Cal. Const., art. I, § 3.)

26 Conclusion: CSAA created the empty-file injury by certifying an incomplete investigation in vi-
27 olation of its duty to investigate (*Egan*, 24 Cal.3d at 818); Porter Scott’s section 391 campaign is
28 the institutional effort and litigation strategy (*White*, 40 Cal.3d at 885) to keep that emptiness from

1 being discovered in open court.

2 **V. RELIEF**

3 For the foregoing reasons, and those in the principal Opposition Memorandum, Plaintiff respect-
4 fully requests that the Court:

- 5 1. Deny Defendant's Motion to Declare Plaintiff a Vexatious Litigant under Code of Civil Pro-
6 cedure sections 391(b)(2) and 391(b)(3);
- 7 2. Deny security and related relief under section 391.3, and deny any request for a statewide
8 prefiling order under section 391.7;
- 9 3. Treat Exhibits F through N as evidence relevant to Defendant's litigation strategy and to the
10 Court's evaluation of Defendant's motion under Code of Civil Procedure section 391; and
- 11 4. Grant such other and further relief as the Court deems just and proper.

Dated: July 22, 2026



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VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona